

Tentative Rulings
September 10, 2026
Department S-17
Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

Unless you wish to submit on the tentative ruling, you must appear for the hearing either in person, CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If you wish to submit to the tentative, please call the Judicial Assistant at (909) 708-8715 in advance of the hearing. If all parties submit on a tentative ruling, it will become final. The tentative ruling may seek input on particular issues and direct appearance. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the court no longer provides an official Court Reporter to transcribe proceedings. Parties who wish to have a transcript must retain their own private reporter and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Please contact the Department if you need this form. Parties who do not retain their own reporter have waived the right to one.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

12. *Marquez v. Look Cinemas II, LLC, et al*, Case No. CIVSB2428912
Plaintiff's Motion for Relief from Order Granting Defendant Spirit Master's MSJ
9/10/26, 9:00 a.m., Dept. S-17

Tentative Ruling

The Court would **GRANT**. The Court would reconsider its July 20, 2026, ruling on Defendant Spirit Master's Motion for Summary Judgment (MSJ) and re-calendar the hearing to allow Plaintiff an opportunity to file its opposition. The Court will seek party input on a hearing date and proper opposition and reply deadlines in order to re-hear the matter.

Case Summary

This is, essentially, a premises liability matter. Defendant Look ran the theater premises; Defendant Spirit owned the premises; and Defendant Morrison was the property manager. Plaintiff was lawfully on the property when she fell due to a purportedly hazardous and dangerous condition.

As such, on October 8, 2024, she filed suit alleging (1) negligence and (2) premises liability against all Defendants. On December 5, 2024, Defendant Spirit filed a Cross-Complaint against Look for (1) contractual indemnity; (2) equitable indemnity; (3) contribution; (4) breach of sub-contracts; and (5) declaratory relief. On April 4, 2024, an amended Cross Complaint was filed asserting the same causes but including a corrected caption. On July 1, 2025, Plaintiff filed a dismissal without prejudice as to Defendant Morrison.

Relevant here, Defendant Spirit filed an MSJ as to the Complaint on March 26, 2026. As of the date of the hearing on that MSJ on July 20, 2026, no opposition was provided and the Court adopted the tentative to grant the unopposed MSJ. This motion for relief from that judgment followed.

Statement of Law

Relief under Code of Civil Procedure section 473(b) may be based either on: (1) an "attorney affidavit of fault," in which event, relief is *mandatory*; or (2) declarations or other evidence showing "mistake, inadvertence, surprise or excusable neglect," in which event relief is *discretionary*. (See, e.g., *Minick v. City of Petaluma* (2016) 3 Cal.App.5th 15, 25-26.) "The court, may, upon any terms as may be just, relieve a party of his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise or excusable neglect." (Code Civ. Proc., § 473(b).) Setting aside under this standard requires the mistake, inadvertence, or surprise to be *reasonable*. (*Cyrus v. Haveson* (1976) 65 Cal. App. 3d 306, 315). The law strongly favors trial on the merits, so doubts in applying Section 473 must be resolved in favor of relief. (*Elston v. City of Turlock* (1985) 38 Cal.3d 227, 233).

Analysis

Here, Plaintiff moved for relief from the July 20, 2026, grant of Defendant Spirit Master's MSJ on the basis that the failure to oppose was through "mistake, inadvertence, and excusable neglect" (Motion, 2:13-14.) The movant cites an internal firm calendaring error in which two separate motions served on the same day were conflated on the firm's calendaring system. (Bassil Decl., ¶¶3-4.) Counsel was unaware that the MSJ was unopposed until the day of the hearing, and he noted that the failure to

oppose was unintentional at the time of the hearing. (Bassil Decl., ¶¶7-9.) Including with the supporting declaration are proposed copies of the opposition and supporting documents. (*Ibid.*, ¶12 & Exhs. E-G.)

Defendant opposes the motion for relief on the grounds that Section 473(b) does not provide for *mandatory* relief and the facts do not support excusable neglect such that *discretionary* relief is appropriate. (See *English v. IKON Business Solutions, Inc.* (2001) 94 Cal.App.4th 130, 136-137.) The Court agrees that mandatory relief is not available.

However, it appears that the facts indicate excusable neglect and that no prejudice would be imparted by the grant of discretionary relief. Defendant rightly points out that a busy calendar and disorganization are not excusable neglect. Still, in this case, there appears to be more than that. The undisputed facts indicate that two separate dispositive motions were sent to Plaintiff on the same date. (Bassil Decl., ¶3 & Exh. A.) Notably, the motions were similarly titled and filed by the same Defendant, namely Defendant Spirit. (*Ibid.*) These similarly titled motions were erroneously conflated by Plaintiff's office as the *same motion*. (Bassil Decl., ¶4.) While a close reading would have prevented the error, the error is not a result of a busy calendar or mere disorganization. Rather, it appears an excusable error given the timing and similarity of the motions.

Even in the alternative, the Court maintains inherent authority to reconsider its own order upon notice and an opportunity for the parties to be heard. (*Le Fracois v. Goel* (2005) 35 Cal.4th 1094.) Thus, viewed with an understanding of the public policy to hear cases on their merits and considering that there is no assertion of prejudice, the Court would grant the motion.

13. *Opendoor Property Trust I v. Zhang, et al*, Case No. LLTSB2400104
Motion for Reconsideration of Order Granting MSJ (re All Occupants)
9/10/26, 9:00 a.m., Dept. S-17

Tentative Ruling

The Court would **DENY**.

Case Summary

This is an unlawful detainer action. Plaintiff Opendoor asserts it is the owner of the at-issue property and that Defendant-Tenant failed to vacate after a five-day notice to vacate. As such, it filed an unlawful detainer action on October 2, 2024. Relevant here, a motion for summary judgment against Defendant Zhang was entered on May 21, 2026. That judgment is currently on appeal.

On June 6, 2026, Plaintiff sought to amend the judgment by *ex parte* to add "All Unknown Occupants," stating that the Proof of Service on All Unknown Occupants was inadvertently not filed with the Court. On June 11, 2026, the Court denied that *ex parte* application but stated Plaintiff could bring a motion for summary judgment. That motion for summary judgment was heard, and granted, on August 11, 2026. This motion for reconsideration followed.